

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CIVIL REVISIONAL JURISDICTION)

Present:

**Mr. Justice Md. Moinul Islam Chowdhury**

**CIVIL REVISION NO. 1390 OF 2006**

Bashira Begum and others

----- Petitioners

-Versus-

Abdul Matin being dead his legal heirs  
1(a) Shamsun Nahar and others

----- Opposite Parties

No one appears

----- For the Petitioners

Mr. Md. Ibrahim Khalil with  
Ms. Behesti Marjan, Advocate

----- For the Opposite Party No. 1

Heard and **Judgment on 12.12.2016**

At the instance of the plaintiffs-petitioners, Bashira Begum and others, this Rule has been issued calling upon the opposite parties to show cause as to why the judgment and order dated 07.03.2006 passed by the Joint District Judge, 2<sup>nd</sup> Court, Noakhali, in Other Appeal No. 74 of 2004 setting aside the judgment and order dated 25.08.2004 passed by the Senior Assistant Judge, Sadar, Noakhali, in Miscellaneous Case No. 15 of 2004 arising out of exparte compromise judgment and decree dated 30.11.2003 passed in Title Suit No. 184 of 1995 shall not be set aside.

The relevant facts for disposal of this Rule, inter alia, are that the predecessor of the present petitioners as the plaintiff filed the Title Suit No. 184 of 1995 in the court of the learned Assistant Judge, Court No. 3, Sadar, Noakhali for declaration that the

judgment and decree dated 10.03.1994 passed in Title Suit No. 125 of 1991 is fraudulent, collusive and not acted upon and also for confirmation of possession upon the suit land described in the schedule of the plaint.

The plaint case is that the said (Title Suit No. 125 of 1994) was filed by one Shamsul Hoq against the heirs of late Fazlul Hoq and others praying for separate saham in respect of his portion of land. In the said suit the present opposite party Nos. 1-4 were the defendant Nos. 99 to 102 and the opposite parties were given a saham.

The Title Suit No. 184 of 1995 was decreed exparte on 30.10.2003 on the basis of a compromise between the plaintiff and some of the defendants upon the solenama executed between the plaintiff-petitioner and the proforma opposite party Nos. 1 to 3 on 30.10.2003. Against the said exparte decree the present opposite party Nos. 1 to 4 (defendant Nos. 99 to 102) in the Title Suit No. 184 of 1995) filed the miscellaneous case No. 15 of 2004 under Order 9 Rule 13 read with section 151 of the Code Civil Procedure for setting aside the exparte decree and to restore the suit to its original file and number.

After hearing the parties the learned trial court rejected the miscellaneous case by his judgment and order dated 25.08.2004. Being aggrieved the present opposite party Nos. 1 to 4(now deceased) filed the miscellaneous case No. 74 of 2004 in the court of learned District Judge, Noakhali which was heard by the learned Joint District Judge, Noakhali on transfer who by his

judgment and order dated 07.03.2006 allowed the appeal and remanded the suit for fresh trial. This revisional application has been filed challenging the said judgment and decree and the Rule was issued thereupon.

This matter has been appearing in the list for at least for 4/5 months and sometime with the name of the learned Advocates for the parties but no one appears to support the Rule during the hearing of the Rule or even today when the judgment is to be delivered.

However, from the revisional application made by the petitioners, it appears from the ground take is that the learned lower appellate court has failed to appreciate the fact that during the trial it was admitted by the defendant opposite party in their evidence that P.W.1 heard about the exparte compromise decree between the plaintiff-petitioner and that of defendant Nos.1-3 proforma opposite party Nos. 1-3 and as such it cannot be said they were unaware of the compromise decree in Title Suit No. 184 of 1995.

It is further submitted that the trial court has justly and legally rejected than application under Order 9 Rule 13 of the Code of Civil Procedure in consideration of the evidence and material on record and there was point in interfering.

The Rule has been opposed by the substituted opposite party Nos. 1(A) to 1(L).

Mr. Md. Ibrahim Khalil, the learned Advocate appearing along with the learned Advocate Ms. Behesti Marjan submits that

the instant proforma-opposite party Nos. 1, 3, 4 created a solenama and obtained exparte decree on 30.11.2003 against exparte decree dated 30.11.2003, therefore, the instant opposite party Nos. 99 to 102 filed Miscellaneous Case No. 15 of 2004 that was disallowed thereafter they preferred Miscellaneous Appeal No. 74 of 2004 that was allowed.

Considering the above submissions made by the learned Advocate appearing for the opposite parties and also considering the application filed under section 115(1) of the Code of Civil Procedure along with the Annexure therein, in particular, the impugned judgment and order passed by the learned appellate court below on 07.03.2006, it appears that the predecessor of the present petitioners as the plaintiff filed the Title Suit No. 184 of 1994 for a declaration that the judgment and decree passed in the Title Suit No. 125 of 1991 being a partition suit was void and inoperative and not binding upon the present petitioners. The said suit was decreed exparte on the basis of a compromise (Solanama) between the plaintiff-petitioners and some of the defendants in the said suit but other defendants were not aware about the exparte decree on the basis of solenama but the other defendants were entitled to contest the suit by filing written statement in the said suit. Some of the defendants in the said suit already filed written statements controverting the prayer made in the Title Suit No. 184 of 1995.

The present opposite party Nos. 1-4 contested this Rule by filing counter affidavit who were the defendant Nos. 99 to 102 in

the Title Suit No. 184 of 1995 contending that by the exparte decree their right have been taken away through the exparte decree passed without giving any opportunity to the present opposite parties, therefore, the present opposite party Nos. 1, 2, 4 (Now deceased) and the opposite party No. 3 filed the Miscellaneous Case No. 15 of 2004 under Order 9 Rule 13 of the Code of Civil Procedure. The said case was not decided on merit but the case was dismissed on technical ground on limitation.

It transpires from the judgment and order passed in the Miscellaneous Case No. 15 of 2004 that the suit was barred by 1(one) day. In my view the learned court should have considered the Miscellaneous Case on merit not on any technical ground such as a limitation period because the section 5 of the Limitation Act has given an authority to a court to condone the delay on some exceptional circumstances. A case should not be barred for 1(one) day if it is a limitation period stipulated in any general law. However any stipulated limitation period in special law cannot be condoned, therefore, I consider that the decision on the judgment and order passed by the learned Trial Court in the Miscellaneous Case No. 15 of 2004 has a misreading and non-consideration of the factual and legal aspects.

The learned appellate court below however came to a lawful conclusion after hearing the parties for allowing the appeal and remanding the suit for a fresh trial of the Title Suit No. 184 of 1995. In view of the above discussion I am of the view that a suit should be disposed of on merit after giving all necessary

opportunities to all the parties in a suit but in the instant case ex parte decree was passed on the basis of a solenama purportedly executed by the present petitioners as the plaintiffs and the defendants in that suit ignoring the right, title and interest of other defendants in the said suit which is not lawful. I, am not, therefore, inclined to interfere in the judgment and order passed by the learned Appellate Court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The learned Senior Assistant Judge, Sadar, Noakhali is hereby directed to hear all the parties in the said suit by giving opportunities to conduct the hearing and to file relevant documents necessary to prove their right and interest and he is further directed to dispose of the suit within 10 months from the date of receipt of the copy of this judgment and order of this court.

The interim order of stay granted at the time of issuance of the Rule upon the operation of the order and judgment dated 07.03.2006 passed by the learned Joint District Judge, 2<sup>nd</sup> Court, Noakhali is hereby recalled and vacated.

The office is directed to communicate the judgment and order to the court concerned immediately.